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PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/COM/04/B/2014/99.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between,

26 Employees including Mr. Chamila Dinesh Balasooriya, No. 71/F/4, Bandipitiya Road, Piliyandala of the one part

and

01. Lanka Hotel Corporation Ltd., No. 327, Union Place, Colombo 02,

02. Ceylon Hotels Corporation PLC, Galle Face Hotel, No. 02, Galle Road, Colombo 03 of the other part

NOW THEREFORE I, S. B. Nawinna, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. Upali Samaraweera, No. D 40, Judges' Quarters, Beddagana Road, Kotte to be the arbitrator and refer the aforesaid Dispute to him for settlement by arbitration.

S. B. NAWINNA,
Minister of Labour.

Colombo,
08th July, 2015.



**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

26 Employees Including Mr. Chamila Dinesh Balasooriya, No. 71/F/4, Bandipitiya Road, Piliyandala of the one part
and

01. Lanka Hotel Corporation Ltd., No. 327, Union Place, Colombo 02,
02. Ceylon Hotels Corporation PLC, Galle Face Hotel, No. 02, Galle Road, Colombo 03 of the other part

STATEMENT OF MATTER IN DISPUTE**The matter in dispute between the aforesaid parties is**

Whether the 26 Employees mentioned below who have been recruited under the Lanka Hotel Corporation have been caused injustice by the said establishment through violating Section 4 (1) of the Lanka Hotel Corporation (Repudiation) Act, No. 25 of 2007 and in the payment of cost of living allowance, annual salary increase and service charges, providing welfare facilities and in making payments for the unavailed leave overtime and Budgetary Relief Allowance, and if so, to what reliefs they are entitled.

- | | |
|--|---|
| 01. Mr. K. A. A. S. Dhammika Premarathne | 14. Mr. M. N. M. Nadzmil |
| 02. Mr. D. W. S. Kumara | 15. Mr. J. Sugathapala |
| 03. Mrs. D. T. N. Damayanthi | 16. Mr. S. K. Munasinghe |
| 04. Mr. R. Nayana Chandana Bandara | 17. Mr. J. A. Indrasiri Abeygunawardena |
| 05. Mr. B. P. Jayarathna Pathirana | 18. Mr. M. A. Chandima |
| 06. Mr. Amith Pushpa Kumara | 19. Mr. Jagath Weerakoon |
| 07. Mr. D. M. Ekanayeka | 20. Mr. Chamila Dinesh Balasooriya |
| 08. Mr. W. Nimal Jayarathne | 21. Mr. B. Indrasiri Fernando |
| 09. Mr. M. A. D. P. Ariyadasa | 22. Mr. Nimal Wedage |
| 10. Mr. A. P. Paranavithana | 23. Mr. R. M. K. Sampath Bandara |
| 11. Mr. J. A. Y. Sampath Suranga | 24. Mr. K. A. Dinesh Sagara Fernando |
| 12. Mr. N. R. S. Pradeep Jayaweera | 25. Mr. Amal Surendra Gamage |
| 13. Mr. W. Samantha Sri Lal Senevirathne | 26. Mr. W. A. D. Sanath |

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 22nd day of June 2015.